

STATE OF NEW YORK

4691--A

Cal. No. 1376

2025-2026 Regular Sessions

IN SENATE

February 11, 2025

Introduced by Sen. CLEARE -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the environmental conservation law, in relation to prohibiting the sale and distribution of certain mercury-added lamps

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 27-2101 of the environmental conservation law is amended by adding two new subdivisions 35 and 36 to read as follows:

35. "Compact fluorescent mercury-added lamp" means a compact, low-pressure, mercury-containing, electric-discharge light source, whether integrally ballasted or non-integrally ballasted and regardless of the tube diameter or length and the shape or size of the lamp, in which a fluorescent coating transforms a portion of the ultraviolet energy generated by the mercury discharge into visible light and that:

(a) Has a single base or end cap of any type, including, but not limited to, a screw base type, a bayonet base type or a two-pin or four-pin base type; and

(b) Provides a light emission between a correlated color temperature of seventeen hundred kelvin and twenty-four thousand kelvin and a Duv of +0.024 and -0.024 in the international commission on illumination (CIE) uniform color space (CAM02-UCS).

36. "Linear fluorescent mercury-added lamp" means a low-pressure, mercury-containing, electric-discharge light source, regardless of the tube diameter and the shape of the lamp, in which a fluorescent coating transforms a portion of the ultraviolet energy generated by the mercury discharge into visible light and that:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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(a) Has two bases or end caps of any type, including, but not limited to, a one-pin or two-pin base type and a recessed double contact base type;

(b) Provides a light emission between a correlated color temperature of seventeen hundred kelvin and twenty-four thousand kelvin and a Duv of +0.024 and -0.024 in the international commission on illumination (CIE) uniform color space (CAM02-UCS); and

(c) Has a tube length of 0.5 feet to eight feet.

§ 2. Section 27-2107 of the environmental conservation law is amended by adding a new subdivision 13 to read as follows:

13. (a) On and after January first, two thousand twenty-eight, no person shall sell, offer for sale, or distribute a compact fluorescent mercury-added lamp or a linear fluorescent mercury-added lamp, except that existing stock acquired prior to such date may be exhausted until July first, two thousand twenty-eight.

(b) The prohibitions in this subdivision do not apply to:

(i) A lamp designed and marketed exclusively for image capture and projection, including: photocopying; printing, directly or in pre-processing; lithography; film or video projection; or holography;

(ii) A lamp that has a high proportion of ultraviolet light emission and is one of the following:

(1) a lamp with high ultraviolet content that has ultraviolet power greater than two milliwatts per kilolumen;

(2) a lamp for germicidal use, such as the destruction of DNA, that emits a peak radiation of approximately 253.7 nanometers;

(3) a lamp designed and marketed exclusively for disinfection or fly trapping from which either the radiation power emitted between two hundred fifty and three hundred fifteen nanometers represents at least five percent of, or the radiation power emitted between three hundred fifteen and four hundred nanometers represents at least twenty percent of, the total radiation power emitted between two hundred fifty and eight hundred nanometers;

(4) a lamp designed and marketed exclusively for the generation of ozone where the primary purpose is to emit radiation at approximately 185.1 nanometers;

(5) a lamp designed and marketed exclusively for coral zooxanthellae symbiosis from which the radiation power emitted between four hundred and four hundred eighty nanometers represents at least forty percent of the total radiation power emitted between two hundred fifty and eight hundred nanometers; and

(6) a lamp designed and marketed exclusively for use in a sunlamp product, as defined in 21 CFR 1040.20(b)(9);

(iii) A lamp designed and marketed exclusively for use in medical or veterinary diagnosis or treatment or in a medical device;

(iv) A lamp designed and marketed exclusively for use in the manufacturing or quality control of pharmaceutical products;

(v) A lamp designed and marketed exclusively for spectroscopy and photometric applications, such as UV-visible spectroscopy, molecular spectroscopy, atomic absorption spectroscopy, nondispersive infrared spectroscopy, Fourier transform infrared spectroscopy, medical analysis, ellipsometry, layer thickness measurement, process monitoring, or environmental monitoring;

(vi) A lamp used by academic and research institutions exclusively for conducting research projects and experiments; or

1 (vii) A compact fluorescent mercury-added lamp used to replace a lamp
2 in a motor vehicle manufactured on or before January first, two thousand
3 twenty.

4 § 3. This act shall take effect on the thirtieth day after it shall
5 have become a law.